

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

2ND CONFERENCE COMMITTEE
SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 1851

By: Schreiber, Deck, and
Stewart of the House

and

Gollihare of the Senate

2ND CONFERENCE COMMITTEE SUBSTITUTE

[contracts - Oklahoma Fair Renewal Act - automatic
renewal contracts - offer terms - online link -
written acknowledgement - notice of material
changes - notice of contract renewal - exceptions -
unlawful business practice - codification -
effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 773 of Title 15, unless there is
created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Fair
Renewal Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 773.1 of Title 15, unless there
3 is created a duplication in numbering, reads as follows:

4 As used in this act, the following terms shall mean:

5 A. "Automatic renewal contract" means a plan or arrangement in
6 which a paid subscription or purchasing agreement is automatically
7 renewed at the end of a definite term for a subsequent term or on a
8 continuous or recurring basis.

9 B. "Automatic renewal offer terms" means the following clear
10 and conspicuous disclosures:

11 1. That an automatic renewal contract will automatically renew
12 or extend after the initial period for a set term not to exceed one
13 (1) year unless the consumer gives express written consent for a
14 longer renewal term;

15 2. A description of the cancellation policy that applies to the
16 offer;

17 3. Any recurring charges that will be charged to the consumer's
18 credit card, debit card, or payment account with a third party as
19 part of an automatic renewal contract;

20 4. The length of an automatic renewal term; and

21 5. The minimum purchase obligation, if any.

22 C. 1. "Clear and conspicuous" or "clearly and conspicuously"
23 means in larger type than the surrounding text; in contrasting type,
24 font, or color to the surrounding text of the same size; or set off

1 from the surrounding text of the same size by symbols or other marks
2 in a manner that clearly calls attention to the language; or

3 2. In the case of an audio disclosure, "clear and conspicuous"
4 or "clearly and conspicuously" means in a volume and cadence
5 sufficient to be readily audible and understandable.

6 D. "Consumer" means an individual who seeks or acquires, by
7 purchase or lease, any goods, services, money, or credit for
8 personal, family, or household purposes.

9 E. "Trial period offer" means a solicitation offering a
10 consumer a period of time in which to sample a product or service,
11 which offer is used as an inducement for the consumer to make a
12 purchase of the product or service or a similar product or service.

13 SECTION 3. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 773.2 of Title 15, unless there
15 is created a duplication in numbering, reads as follows:

16 A. It is unlawful for a person who offers an automatic renewal
17 contract to a consumer in this state to:

18 1. Fail to present the automatic renewal offer terms in a clear
19 and conspicuous manner before the automatic renewal contract is
20 executed. In the case of an offer that is conveyed by voice, the
21 person must present the terms in temporal proximity to the request
22 for the consumer's consent to the offer. If the offer includes a
23 trial period offer, the offer must also include a clear and
24 conspicuous explanation of the price that will be charged and any

1 further purchase obligations that will be imposed on the consumer
2 after the trial period ends;

3 2. Utilize an online link as part of an offer of an automatic
4 renewal contract, which online link directs a consumer to the
5 information about the automatic renewal contract required by this
6 subsection, unless the online link:

7 a. is available before a consumer elects to purchase any
8 good or service subject to the automatic renewal
9 contract,

10 b. appears in close proximity to any online link used by
11 the consumer to purchase any good or service or enroll
12 in the automatic renewal contract, and

13 c. is labeled with, or is directly adjacent to, a clear
14 and conspicuous disclosure that states that by
15 purchasing the good or service, the consumer agrees to
16 enroll in an automatic renewal contract;

17 3. Fail to provide the consumer a written acknowledgment that
18 includes the automatic renewal offer terms, the cancellation policy,
19 and information regarding how to cancel in a manner that is capable
20 of being retained by the consumer. If the offer of an automatic
21 renewal contract includes a trial period offer, the person shall
22 also disclose in the written acknowledgment how to cancel the free
23 trial before the consumer is required to pay for the goods or
24 services;

1 4. Fail to provide a simple, cost-effective, timely, easy-to-
2 use, and readily accessible mechanism for canceling an automatic
3 renewal contract or trial period offer. A person is deemed to
4 comply with this paragraph if the person offers:

5 a. a direct online cancellation link to initiate the
6 cancellation process that is:

7 (1) located on the person's website, within the
8 consumer's account or profile, or contained in an
9 electronic device or service or an electronic
10 communication to the consumer, and

11 (2) available to the consumer after the consumer
12 completes a reasonable authentication protocol
13 used solely to confirm that the consumer is
14 authorized to make changes to the account, or

15 b. an in-person mechanism for canceling an automatic
16 renewal contract or trial period offer, which
17 mechanism:

18 (1) is at a physical location where the consumer
19 regularly utilizes any goods or services that are
20 subject to the automatic renewal contract, and

21 (2) satisfies the requirements of this paragraph.

22 SECTION 4. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 773.3 of Title 15, unless there
24 is created a duplication in numbering, reads as follows:

1 If a material change occurs in the terms of an automatic renewal
2 contract that has been accepted by a consumer in this state, the
3 person shall provide to the consumer, a clear and conspicuous notice
4 of the material change and information regarding cancellation of the
5 automatic renewal contract, including information concerning the
6 mechanism described in paragraph 4 of Section 3 of this act.

7 SECTION 5. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 773.4 of Title 15, unless there
9 is created a duplication in numbering, reads as follows:

10 A. A person that sells a good or service to a consumer pursuant
11 to an automatic renewal contract of one year or more in duration
12 shall notify the consumer that the automatic renewal contract will
13 automatically renew or continue unless the consumer cancels the
14 automatic renewal contract. The notice must inform the consumer of
15 the process for canceling the automatic renewal contract, and the
16 process must provide clear and accurate information about the
17 identity of the sender and be consistent with paragraph 4 of Section
18 3 of this act. The person shall provide the notice by:

19 1. Physical mail;

20 2. Electronic mail; or

21 3. Another easily accessible form of communication, such as a
22 text message or a mobile phone application, if the consumer
23 specifically authorizes the person to provide notice in such form or
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1 if the consumer customarily uses such form to communicate with the
2 person.

3 B. A person that sells a good or service to a consumer pursuant
4 to an automatic renewal contract shall send the notice described in
5 subsection A of this section at least fifteen (15) and no more than
6 forty-five (45) days prior to the renewal.

7 SECTION 6. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 773.5 of Title 15, unless there
9 is created a duplication in numbering, reads as follows:

10 A. Notwithstanding any provision of this act to the contrary,
11 this act does not apply to:

12 1. A service provided by a person pursuant to a franchise
13 issued by a political subdivision of the state or a license,
14 franchise, certificate, or other authorization issued by the
15 Oklahoma Corporation Commission;

16 2. A service provided by a person or an affiliate or subsidiary
17 thereof that is regulated by the Federal Communications Commission,
18 the Federal Energy Regulatory Commission, or the Oklahoma
19 Corporation Commission;

20 3. Any person or entity regulated by the Oklahoma Insurance
21 Department, or an affiliate of that person or entity;

22 4. A bank or bank holding company that is licensed under state
23 or federal law, or a subsidiary or affiliate of such a bank or bank
24 holding company;

1 5. A credit union or other financial institution that is
2 licensed under state or federal law;

3 6. An air carrier as defined in and regulated under the Federal
4 Aviation Act of 1958, 49 U.S.C., Section 40101 et seq., as amended,
5 including the federal Airline Deregulation Act of 1978, 49 U.S.C.,
6 Section 41713, as amended;

7 7. Any newspaper qualified and authorized by Section 106 of
8 Title 25 of the Oklahoma Statutes to publish legal or public notices
9 under the laws of the State of Oklahoma; or

10 8. An entity regulated by the Oklahoma Department of Labor
11 under the Alarm, Locksmith, and Fire Sprinkler Industry Act.

12 SECTION 7. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 773.6 of Title 15, unless there
14 is created a duplication in numbering, reads as follows:

15 Any violation of this act shall constitute an unlawful business
16 practice and shall be subject to the provisions of the Oklahoma
17 Consumer Protection Act other than Section 761.1 of Title 15 of the
18 Oklahoma Statutes. Any violation of this act shall be enforceable
19 exclusively by the Attorney General and the district attorneys of
20 this state.

21 SECTION 8. This act shall become effective April 1, 2027.

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